

13. **Where the power is left to the discretion of the trustees the purchaser cannot question the exercise of the discretion.**—A testator devised an estate to trustees upon trust to apply the rents for fifteen years in payment of incumbrances charged thereon, and if, for any reason whatever, in the *opinion of the trustees* a sale should become necessary, “they were authorised to sell.” The purchaser objected that the amount of the incumbrances would not justify a sale of the whole estate, but it was held that the power of sale depended on the opinion of the trustees, and the fact that they thought it necessary would be evidenced by the conveyance (*b*).

14. **A trust to mortgage will not authorise a sale.**—A trust to raise money by *mortgage* will not authorise a sale, though the latter may be more beneficial to the estate; and the Court itself has no jurisdiction to substitute a sale for a mortgage (*c*).

15. **Powers of sale.**—It was held by V. C. Kindersley, that in the absence of any special direction a mere power to *mortgage* does not authorise a mortgage *with a power of sale*, since how can a trustee who has not in himself even any power to sell give authority to another to sell (*d*). But according to V. C. Malins a direction to trustees to raise money “by mortgage *in such manner as they may think fit*,” authorises a mortgage with a power of sale (*e*), and according to Lord Romilly, M. R., a power to raise money by *sale or mortgage* justifies a mortgage with a power of sale (*f*). There is no doubt a conflict of authority. If a mortgage *per se* does not imply a power of sale, a direction to sell or mortgage will not carry the matter further, for the trustee has no power to delegate his authority to sell, and if the broad general principle be adopted that the power of sale is an ordinary incident to the mortgage, the logical result would

M. & G. 645; Page v. Cooper, 16 Beav. 400.

(*b*) Rendlesham v. Meux, 14 Sim. 249.

(*c*) Drake v. Whitmore, 5 De G. & Sm. 619.

(*d*) Clarke v. Royal Panopticon, 4 Drew. 26; but see Russell v. Plaice,

18 Beav. 21; Leigh v. Lloyd, 2 De G. J. & S. 330; 35 Beav. 455; *Re Chawner's Will*, 8 L. R. Eq. 569.

(*e*) *Re Chawner's Will*, 8 L. R. Eq. 569.

(*f*) Bridges v. Longman, 24 Beav. 27; and see Cook v. Dawson, 29 Beav. 128.